

ENCLOSURE A: The record and the debate, point by point

To the open letter of October 9, 2026 to the candidates for Minnesota Attorney General.

Seven points, each with the office's words in the record and the candidates' words in public; every quotation is given with its source. Debate times are from the recording of the MPR News Politics Friday debate of October 2, 2026 as published on YouTube ("Minnesota Attorney General Debate: Keith Ellison vs. Ron Schutz | Full Debate"). Record citations are to *Kirchner v. Ellison*, No. 26-cv-2594 (D. Minn.): "Ex. A" is Exhibit A to the Complaint (ECF 1-2); "Doc. 37" is the Attorney General's memorandum of October 7, 2026 (ECF 37).

1. The statute's duty.

In the record. The February 26 letter (Ex. A at 2) does not mention § 8.31. In court the office defends the letter as discretion, Doc. 37 at 5: "the AGO could still reject the petition for any reason at all without it constituting an injury to Plaintiff."

In public. Mr. Ellison, 2:49: "Minnesota Statute 8.31 requires, it says shall, the attorney general shall investigate all illegality, unfairness and discrimination in the area of business, commerce and trade. And I have lived up to that as early as this morning."

2. Investigation.

In the record. Ex. A at 2: "nor did it delegate the authority to investigate criminal matters to this Office."

In public. Mr. Ellison, 12:37–12:52: "They're investigators ... They are career prosecutors and the Bureau of Criminal Apprehension. We just brought a bunch of cases this week." 21:19: "I also am assisting local prosecutors in the investigation and in one case, prosecution of the people who were shot by ICE agents." 25:24: "Yes, we're going to investigate." Mr. Schutz, 22:07–23:26: "there needed to be a joint federal and state investigation ... if it leads to prosecutions and the evidence warrants it, that's what should happen ... I am more than happy to lead the charge."

3. Referral to the FBI.

In the record. Ex. A at 2–3: the office directed the citizen to the FBI's Internet Crime Complaint Center: "You may contact the IC3 and make a request to investigate."

In public. Mr. Ellison, 8:51–9:00, on Feeding Our Future: "we began to work with the FBI. And later there were search warrants executed. There was then indictments."

4. Prosecution.

In the record. Ex. A at 2: "the Minnesota Legislature delegated the authority to prosecute criminal matters to the county attorney. It did not delegate any such authority to this Office." The

office's website (Compl. ¶ 22; Ex. B at 4): "It delegated the authority to prosecute criminal matters to the county attorney. It did not delegate such authority to this Office."

In public. Mr. Ellison, 5:57: "We bring the charges. We get the convictions." 44:06: "We just convicted somebody in Winona who was a coach and criminally victimized three people." 57:33: "I've convicted over 350 people of Medicaid fraud, one every eight days." Mr. Schutz, 4:34: "The attorney general is tasked under Minnesota statutes with original criminal jurisdiction over Medicaid and medical assistance fraud." 10:31: "You prosecute people by charging them with at least three felony counts of fraud over \$35,000."

5. The standard for acting.

In the record. The office's position in court is that a citizen "does not have a constitutional right to have his referral investigated" (ECF 11 at 13) and that a referral may be refused "for any reason at all" (Doc. 37 at 5).

In public. Mr. Schutz, 16:14: "if they committed wrongdoing and Minnesotans were harmed, the attorney general should take action against that." Mr. Ellison, 16:24, asked whether that is his standard: "Well, obviously, but that's just the basics." Mr. Schutz, 54:48: "If they're not complying with some law, then it's the job of the Attorney General to step in."

6. Discretion.

In the record. Doc. 37 at 5 treats the February 26 statement that the office lacks authority as an exercise of discretion.

In public. Mr. Schutz, 11:22–11:55: "the attorney general has broad discretion. As to how he allocates resources within the office ... I have the discretion within the office as to where to devote resources."

7. The office in court.

In the record. The office has defended the February 26 statement as accurate: the letter "does not disavow the AGO's jurisdiction to investigate violations of PCFA, only the ability to investigate and prosecute criminal matters," so "there is no 'misstatement of law'" (Doc. 11 at 8); "The February 26 letter contains no misstatement of law" (Doc. 16 at 5); the Attorney General "may only exercise the prosecutorial powers of a county attorney at the direction of the governor or via consent from a county attorney" (Doc. 11 at 8). At the same time it told the court that "neither party disputes" the office's authority to investigate violations of the Consumer Fraud Act and that the office "must investigate" them, while denying that the statutes give it "broad criminal authority" (Doc. 16 at 4–5); and, in the alternative, it argued that "assuming ... the Attorney General's website and the February 26 letter do misstate the law," the citizen has no redress because investigation is discretionary and no standing to complain (Doc. 16 at 6; Doc. 11 at 9, 13). The court dismissed on that ground, "even if Kirchner is correct" that the office has the

authority (Doc. 27 at 5), and the office's latest filing says it "could still reject the petition for any reason at all" (Doc. 37 at 5). The letter has not been withdrawn, and the website said the same when last captured on March 18, 2026.

In public. Mr. Ellison, 2:49, 12:37, 21:19 and 44:06; Mr. Schutz, 4:34, 10:31 and 22:07–23:26, as set out at points 1, 2 and 4 above.

The statute. Minn. Stat. § 8.31, subd. 1 (2025): "The attorney general shall investigate violations of the law of this state respecting unfair, discriminatory, and other unlawful practices in business, commerce, or trade, and specifically, but not exclusively, the Nonprofit Corporation Act (sections 317A.001 to 317A.909), the Act Against Unfair Discrimination and Competition (sections 325D.01 to 325D.07), the Unlawful Trade Practices Act (sections 325D.09 to 325D.16), the Antitrust Act (sections 325D.49 to 325D.66), section 325F.67 and other laws against false or fraudulent advertising, the antidiscrimination acts contained in section 325D.67, the act against monopolization of food products (section 325D.68), the act regulating telephone advertising services (section 325E.39), the Prevention of Consumer Fraud Act (sections 325F.68 to 325F.70), and chapter 53A regulating currency exchanges and assist in the enforcement of those laws as in this section provided." Minn. Stat. § 645.44, subd. 16: "'Shall' is mandatory."

The statutes behind question 2 (as filed with the Complaint, Exhibit E, ECF 3-1). Minn. Stat. § 8.31, subd. 2: "When the attorney general has information providing a reasonable ground to believe that any person has violated, or is about to violate, any of the laws of this state referred to in subdivision 1, the attorney general shall have power to investigate those violations, or suspected violations, and to take such steps as are necessary to cause the arrest and prosecution of all persons violating any of the statutes specifically mentioned in subdivision 1 or any other laws respecting unfair, discriminatory, or other unlawful practices in business, commerce, or trade." Minn. Stat. § 8.01: "Upon request of the county attorney, the attorney general shall appear in court in such criminal cases as the attorney general deems proper. ... Whenever the governor shall so request, in writing, the attorney general shall prosecute any person charged with an indictable offense, and in all such cases may attend upon the grand jury and exercise the powers of a county attorney." Minn. Stat. § 299C.061 (Financial Crimes and Fraud Section, as amended in 2025), subd. 4(c): "Notwithstanding paragraph (b), this section has no effect on the authority of the attorney general to investigate and enforce violations or suspected violations of Minnesota civil or criminal law."

The referral's requests (Ex. A, referral § V): (1) open a criminal investigation; (2) issue civil investigative demands; (3) coordinate with federal authorities; (4) pursue criminal prosecution where the evidence supports charges; (5) pursue civil enforcement under Minnesota consumer protection statutes; (6) preserve evidence. The February 26 letter addressed items 1 and 4 by disclaimer, answered item 3 only by directing the citizen to the FBI's web portal, and did not address items 2, 5 or 6.